

**UNITED STATES OF AMERICA  
FEDERAL ENERGY REGULATORY COMMISSION**

**Interconnection of Large Loads to the  
Interstate Transmission System**

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**Docket No. RM26-4-000**

**LIMITED COMMENTS OF FUELCELL ENERGY, INC.  
IN RESPONSE TO  
ADVANCE NOTICE OF PROPOSED RULEMAKING**

Pursuant to the October 27, 2025 Notice Inviting Comments issued by the Federal Energy Regulatory Commission (“FERC” or the “Commission”), and the November 7, 2025 Notice Granting Extension of Time, FuelCell Energy, Inc. (“FuelCell Energy”) provides limited comments on the proposed advance notice of proposed rulemaking (“Proposed ANOPR”) that was sent on October 23, 2025 from the Secretary of the United States Department of Energy (“DOE”) to the Commission and released for public comment in the above-captioned docket.<sup>1</sup> FuelCell Energy generally supports the principles set forth in the Proposed ANOPR, but urges the Commission to consider the unique circumstances presented by hybrid facilities consisting of generation resources co-located with, and intended to support, large loads in any proposed rulemaking. Specifically, FuelCell Energy respectfully requests that the Commission consider:

- Adopting a separate interconnection standard for hybrid facilities that reflects each facility’s actual operational characteristics and impact on the transmission grid, instead of applying the thresholds established for generation or load facilities;

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<sup>1</sup> *Interconnection of Large Loads to the Interstate Transmission System*, Advance Notice of Proposed Rulemaking, Docket No. RM26-4-000 (Oct. 27, 2025) (“Proposed ANOPR”).

- Developing a framework that ensures that interconnection studies fully reflect each hybrid facility's operational scope as opposed to a facility's net injections or withdrawals; and
- Clarifying that load interconnection customers may exercise an option to build in circumstances where they are not the Transmission Owner or Transmission Provider.

## **I. COMMUNICATIONS**

Communications in this proceeding can be directed to the following individuals:

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## **II. BACKGROUND**

### **A. FuelCell Energy, Inc.**

FuelCell Energy is an American clean technology and manufacturing company providing large-scale, always-on, power and emissions management solutions. The company was founded in the United States in 1969 by two scientists devoted to pursuing technological innovations that address a wide variety of energy priorities through patent-protected U.S. innovation and compound combinations that produce and use energy in ways that are smarter and cleaner. Today, FuelCell Energy is the only company in the world with projects over 10 megawatts ("MW") operating for at least 10 years, with over 22 years of proven baseload power generation, holding 542 global patents covering our fuel cell technology, 687 modules deployed, and 17 million megawatt-hours generated.

## **B. United States Department of Energy Proposed ANOPR**

On October 23, 2025, DOE Secretary Chris Wright issued a letter and Proposed ANOPR directing the Commission to (i) consider 14 principles set forth therein and (ii) initiate rulemaking procedures proposing reforms to ensure the orderly and uniform interconnection of large loads to the transmission system, including hybrid facilities that will share a point of interconnection (“POI”) with new or existing generating facilities. Secretary Wright requested that the Commission initiate a rulemaking proceeding and issue a final rule by April 30, 2026.

## **III. COMMENTS**

FuelCell Energy appreciates the attention to and engagement by DOE and the Commission on the issue of large load interconnections to the transmission system. FuelCell Energy agrees with the premise articulated in the Proposed ANOPR that the Commission should exercise certain limited jurisdiction over these types of interconnections to the transmission system, particularly in light of the unprecedented growth of large loads, the emerging prevalence of hybrid facilities, and the need for uniform standards to ensure open and non-discriminatory access to the transmission system. However, FuelCell Energy would respectfully caution the Commission to ensure that appropriate guardrails are maintained on its exercise of jurisdiction to avoid infringing on the jurisdiction of the states. FuelCell Energy provides specific, limited comments on several of the principles for reform set forth in the Proposed ANOPR to highlight special considerations that should apply to any rulemaking concerning the interconnection of hybrid facilities.

**A. Principle Two: “[C]onsistent with the Commission’s *pro forma* LGIP and LGIA, the reforms should only apply to new loads greater than 20 MW and, for hybrid facilities, where the load is greater than 20 MW.”<sup>2</sup>**

The Commission should adopt a distinct interconnection standard for hybrid facilities to ensure that such configurations are evaluated accurately and consistently, rather than being subject to thresholds designed solely for generation facilities or for conventional load. Even if the Commission elects to focus its rulemaking for load interconnections on loads greater than 20 MW,<sup>3</sup> FuelCell Energy submits that a separate standard is necessary for hybrid facilities that combine significant generation and load components. This distinction is critical because the generation component of a hybrid facility may exceed 20 MW and serve an associated load of comparable or greater magnitude, while the net output of the facility could appear to fall below 20 MW due to system limitations.

In addition to establishing clear standards for hybrid facility configurations, the Commission should also address how project phasing will be managed as both generation and load increase in tandem with transmission system upgrades. If a 20 MW threshold is adopted, the Commission must clearly define how that threshold will be measured. For example, if measured at the POI, the framework must account for facilities where generation and load effectively offset one another. A facility with a net 10 MW output could, in practice, consist of a 700 MW generator paired with a 690 MW load. Such cases demonstrate the need for a distinct process that enables Transmission Owners and Transmission Providers to properly assess the full system impacts of hybrid facilities. Ultimately, a tailored interconnection standard for hybrid facilities would yield a

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<sup>2</sup> Proposed ANOPR at P 19.

<sup>3</sup> FCE notes that the Large Generator Interconnection Procedures (LGIP) and Large Generator Interconnection Agreement (LGIA) already apply to facilities greater than 20 MW.

more accurate and equitable assessment of these facilities' operational characteristics and their effects on the transmission grid. Any size threshold and assessment framework established by the Commission should seek to ensure that the unique characteristics of hybrid facility configurations are appropriately captured and evaluated within any new interconnection standards.

**B. Principle Five: “[H]ybrid facilities should be studied based on the amount of injection and/or withdrawal rights requested.”<sup>4</sup>**

The Commission's interconnection framework should prioritize system reliability by ensuring that studies of hybrid facilities reflect their full operational scope, rather than only their net injections or withdrawals. While it may be more expedient to study a hybrid facility based on the net amount of injection and/or withdrawal rights requested, FuelCell Energy encourages the Commission to recognize that this approach could obscure the actual operational impacts of such facilities. Accordingly, the Commission should ensure that the Transmission Owner or Transmission Provider study and account for the full amount of load and MWs of generation that make up a hybrid facility. In the hypothetical of the Proposed ANOPR, “a hybrid facility consisting of a 500 MW load and a 600 MW generating facility may seek no withdrawal rights and 100 MW of injection rights.”<sup>5</sup> While this may incentivize co-location, in the long run it may actually minimize flexibility and create challenges for the hybrid facility if the Transmission Owner or Transmission Provider is not fully aware of the amount of generation or load that is connected to its system. Although a generation resource may initially plan to fully support a large load as a hybrid resource, it may become more economically feasible in the future for that resource to sell directly into the wholesale market. At that point, the generation resource would have to undergo

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<sup>4</sup> Proposed ANOPR at P 22.

<sup>5</sup> *Id.*

the generation interconnection study process from step one, which could be cost prohibitive and result in delays and inefficiencies.

Further, during emergencies or outages of the generator or load, it is critical that the Transmission Owner or Transmission Provider be aware of, and have studied, the full potential load that would draw from the transmission system or the full potential generation MW that would inject into the system. Therefore, if the Commission decides to allow hybrid facilities to be studied at the net amount, it should give this as an *option* rather than a mandatory requirement.

**C. Principle Nine: “[T]o the extent the interconnection customer is not the transmission owner, the interconnection customer shall be afforded the same (or equivalent) option to build as currently provided to generator interconnection customers.”<sup>6</sup>**

FuelCell Energy agrees that, in situations where the load interconnection customer is not the Transmission Owner or Transmission Provider, the customer should be afforded the same or equivalent option to build as is currently available to generator interconnection customers. This parity is essential to ensuring fairness and efficiency in the interconnection process. Providing load interconnection customers with comparable rights promotes competition and helps prevent undue discrimination among interconnection customers with similar technical and financial capabilities.

However, it is equally important that this option be explicitly extended to hybrid facilities. Given the growing prevalence of hybrid projects that integrate both generation and load components, these facilities should have the same right to exercise an option to build as traditional generation-only projects. Without such clarity, hybrid developers could face unnecessary uncertainty or delays, which would in turn discourage investment in these increasingly vital resources.

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<sup>6</sup> Proposed ANOPR at P 29.

Extending equivalent treatment to hybrid facilities also acknowledges their unique configuration and operational flexibility. Because hybrid facilities can provide both generation and load benefits to the grid, allowing them to exercise an option to build ensures that they are not disadvantaged in the interconnection process and can move forward on timelines comparable to other resource types. Ultimately, adopting this parity-based approach would support continued innovation and development in this evolving segment of the energy sector.

#### **IV. CONCLUSION**

As noted above, FuelCell Energy generally supports the Commission's efforts to standardize the interconnection of large loads to the transmission system and encourages the Commission to consider FuelCell Energy's comments on the three principles described above in the context of ensuring parity for hybrid facilities. For the foregoing reasons, and for good cause shown, FuelCell Energy respectfully requests that the Commission consider these comments in its evaluation of the Proposed ANOPR and in its future rulemaking.

Respectfully submitted,

/s/ Alexandra L. Isaac

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